

**ATTACHMENT 12 – RESPONSE LETTER FROM BECHTEL / PARSONS
BRINCKERHOFF (AUTHORIZED REPRESENTATIVE) TO MODERN
CONTINENTAL COMPANY DATED NOVEMBER 11, 1999**
(3 pages)



Massachusetts Turnpike Authority
Central Artery/Tunnel Project

November 11, 1999

Letter No.: C09B2-0409
File No.: CN-9.09B2.02
CN-9.09B2.39.24

Mr. Robert Coutts
Project Manager
Modern Continental Companies, Inc.
600 Memorial Drive
Cambridge, MA 02210

Subject: Central Artery (I-93)/Tunnel (I-90) Project
Contract No. 99119-C09B2
I-90 Seaport Access Tunnel Finishes
Adhesive Anchor Movement

Reference: MCC Letter No. 0114, dated 10/07/99
B/PB Letter No. 0350, dated 10/12/99
MCC Letter No. 0139, dated 11/08/99

Dear Mr. Coutts:

Receipt of the above referenced letter in which Modern Continental Construction considers additional testing of adhesive anchors as a change to the Contract, is hereby acknowledged.

We do not concur with your position that all elements of the ceiling have been installed in accordance with the Contract. Whereas, adhesive anchors are over torqued and the ceiling hangers are not loaded uniformly. Until the anchors in question are removed and inspected can a determination be made of correct or incorrect installation techniques.

We concur with the recommendations in your letter from Power Fasteners that Modern Continental Construction will remove and replace anchors which exhibited movement and the proof testing of the anchors subjected to torque values higher than the manufacturer's recommended values.

To summarize, the action items from our October 12, 1999 letter:

1. MCC to contact the supplier of the adhesive anchor bolt system, review the installation of the failed anchors and obtain a manufacturer's recommendation.

Action has been completed, Power Fasteners has reviewed the installation and provided a recommended corrective action.

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2. MCC to confirm that all ceiling hangers are correctly loaded and have uniform load.

Open Item

3. MCC to investigate with the manufacture the possibility to retest the anchors to design loading after the supports are properly adjusted.

Action has been completed, Power Fasteners has reviewed the installation and provided a recommended corrective action to retest anchors that have not indicated movement.

4. B/PB will confirm that ceiling load calculations are correct.

Action has been completed, B/PB has re-confirmed that design loads for the ceiling system are correctly stated.

Modern Continental Construction is requested to provide a schedule for the removal and replacement of the damaged anchors. B/PB requests to be present for the removal and retesting of the anchors in question. Prior to commencing new ceiling installations where adhesive anchors are used, confirm that no over torquing has occurred with previously installed ceiling plates.

Based on the above, the project has determined that there is no merit to MCC's claim for additional compensation and hereby inform you that this claim is denied.

If you have any questions, please contact me at 350-7594, ext. 56.

Sincerely,

BECHTEL/PARSONS BRINCKERHOFF


Robert E. Steffy
Resident Engineer
Authorized Representative of
the Project Director

RES/ks

cc: M. Charney